

2:00 PM

LINE 11

25-CLJ-08366

WELLS FARGO BANK, N.A. VS. STEVEN M BANCROFT

WELLS FARGO BANK, N.A.
STEVEN M BANCROFT

EDGAR B LOPEZ

MOTION FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSIONS AS ADMITTED

TENTATIVE RULING:

The court DENIES without prejudice plaintiff Wells Fargo Bank N.A.'s unopposed motion for an order deeming the truth of the matters specified in plaintiff's request for admissions for failure to provide proper notice to defendant Steven M. Bancroft.

In the notice of motion, plaintiff put the date of July 7, 2026 as the hearing date. Then the clerk's office changed the hearing date to July 21, 2026. The court file shows a proof of service filed April 14, 2026, the same date of the filing but endorsed filed-documents are not returned the same day they are filed. Thus, the notice sent to defendant did not have the correct date.

There is no amended proof of service in the court file. Therefore, defendant did not receive proper notice of the hearing date (Cal. Rules of Court, rule 3.1110(b)(1)) and, therefore, the court must deny the motion because it lacks jurisdiction to hear it. (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 [“court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.”].)

If the tentative ruling is uncontested, it shall become the order of the court without the need for a formal order.

2:00 PM

LINE 12

25-CLJ-10141

WELLS FARGO BANK, N.A. VS LUISA P ECHANE

WELLS FARGO BANK, N.A.
LUISA P ECHANE

JON O. BLANDA
PAUL EUM

MOTION FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSIONS AS ADMITTED

TENTATIVE RULING:

The court DENIES without prejudice plaintiff Wells Fargo Bank N.A.'s unopposed motion for an order deeming the truth of the matters specified in plaintiff's request for admissions for failure to provide proper notice to defendant Luisa P. Echane.

In the notice of motion, plaintiff put the date of June 30, 2026 as the hearing date. Then the clerk's office changed the hearing date to July 21, 2026. The court file shows a proof of service filed April 20, 2026, the same date of the filing but endorsed filed-documents are not returned the same day they are filed. Thus, the notice sent to defendant did not have the correct date.

There is no amended proof of service in the court file. Therefore, defendant did not receive proper notice of the hearing date (Cal. Rules of Court, rule 3.1110(b)(1)) and, therefore, the court must deny the motion because it lacks jurisdiction to hear it. (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 [“court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.”].)

If the tentative ruling is uncontested, it shall become the order of the court without the need for a formal order.
